DONALD SARUDZAI MAKONI
(Represented by PETTY MAKONI)
and
WAMBUTSO DONALD MAKONI
and
THE PROVINCIAL MINING DIRECTOR
MASHONALAND CENTRAL PROVINCE N.O.
and
THE MINISTER OF MINES AND MINING DEVELOPMENT N.O.

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE, 16 and 18 May 2026

Opposed Application

Ms *Y Chigodora*, for the applicant
Mr *K.V. Munakamwe*, for the 1st respondent

MAMBARA J:

[1] The commandment to honour one's father and mother is ancient. Shakespeare, in *King Lear*, gave literary expression to the same sorrow when he wrote of the sharpness of filial ingratitude. But courts do not decide disputes by sentiment, scripture, or poetry. They decide them by law. This matter is a family quarrel dressed in mining robes. A father, acting through his wife, seeks to evict his son from mining claims. The son resists, saying the application has been brought in a manner which the rules of this Court do not permit.

[2] The applicant seeks the eviction of the 1st respondent and all those claiming occupation through him from certain Tumai mining claims in Guruve. The applicant says he is the registered holder of the claims. He further says the 1st respondent previously operated the claims under a special power of attorney but abused that authority by selling mining claims without consent. The applicant says the power of attorney was then revoked.

[3] The founding affidavit was deposed to by Petty Makoni, the applicant's wife and the 1st respondent's mother. She relies on a general power of attorney said to have been granted to her by the applicant. It is common cause, at least on the papers, that the applicant suffered a

stroke. The applicant's case is that the stroke affected his physical ability only and not his mental capacity.

[4] The first respondent raises a point in limine. He submits that the application is not properly before the Court because the deponent to the founding affidavit had no locus standi to bring proceedings on behalf of the applicant. He relies on r 61(2)(a) of the High Court Rules, 2021. He contends that, before litigation touching the applicant's estate could be brought, there ought first to have been a chamber application for the appointment of a curator ad litem.

[5] The applicant's answer is that no curator was required. Ms Chigodora submitted that the applicant is not mentally disordered or intellectually handicapped. She referred to the Mental Health Act [*Chapter 15:12*] and argued that a curator under that Act is only required where the person concerned is a "patient" as defined in that Act. The applicant, she argued, is not such a patient. He is physically disabled but mentally competent.

[6] The point for determination is therefore narrow. It is whether, in an application concerning the estate or proprietary rights of a person alleged to be under disability, r 61(2)(a) required a prior chamber application for the appointment of a curator ad litem.

[7] Rule 61(2)(a) of the High Court Rules, 2021 provides:

> "In the case of any application in connection with the estate of a person alleged to be under any disability, mental or otherwise, a chamber application, annexing the written consent of the person proposed to be appointed, shall first be made for the appointment of a curator ad litem."

[8] The language is important. The rule does not say "mental disability only". It says "any disability, mental or otherwise". It does not say the application may be made after the proceedings have commenced. It says it "shall first" be made. The words "shall first" are words of command, not words of convenience.

[9] The Constitutional Court in *Makanda* v *Magistrate Sande* N.O. & 3 Ors CCZ 3/21 reaffirmed the ordinary principle that where a procedural requirement is couched in mandatory terms, failure to comply with it may render the proceedings irregular and improperly before the court. The same approach appears in Messenger of the Magistrates

Court, Durban v Pillay 1952 (3) SA 678 (A), where the use of "shall" was treated as a strong indication of a peremptory requirement.

[10] The applicant's reliance on the Mental Health Act does not answer r 61(2)(a). The Mental Health Act defines a "patient" as a person who is mentally disordered or intellectually handicapped, or concerning whom proceedings under that Act are considered necessary to determine whether he is mentally disordered or intellectually handicapped. That definition serves the purposes of that Act.

[11] Section 86 of the Mental Health Act concerns the appointment of a curator for the care and administration of the estate of a patient. It is therefore concerned with a particular statutory regime applicable to mental disorder or intellectual handicap. Rule 61(2)(a), by contrast, is a rule of court regulating proceedings in this Court where litigation concerns the estate of a person alleged to be under disability, whether mental or otherwise.

[12] The two instruments must not be conflated. The Mental Health Act determines when a person is a patient under that Act. Rule 61(2)(a) determines how proceedings must be instituted in this Court where the estate of a person alleged to be under disability is implicated. The fact that a person is not a "patient" under the Mental Health Act does not automatically remove him from the protective scope of r 61(2)(a).

[13] This interpretation is consistent with the broader purpose of curatorship. A curator ad litem is not appointed to punish the person under disability. Nor is such appointment a declaration that the person is mentally unsound. It is a protective procedural device. Its object is to ensure that where a litigant's ability to act personally is impaired or seriously disputed, the Court receives independent assistance and the litigant's proprietary interests are not placed in the hands of a conflicted or self-appointed representative.

[14] South African authority is useful. In *Ex parte* Comins 1951 (2) SA 249 (W), the court recognised that curatorial intervention may be appropriate even where the person concerned is of full mental capacity but, because of physical disability or other circumstances, is unable to manage his estate unaided. Similarly, Zimbabwean commentary and case law recognise the distinction between loss of mental capacity and the need for protective representation in the administration or litigation of property interests.

[15] The applicant's argument that physical disability does not equal mental incapacity is correct as far as it goes. A person who has suffered a stroke is not, for that reason alone, deprived of legal capacity. The law does not equate bodily frailty with mental incompetence. Cases such as Baeck v Brighton N.O. & Anor 1983 (1) ZLR 270 (H), *Ngwenya* v *Ngwenya & Ors* 2000 (1) ZLR 117 (H) and *Executive Hotel (Pvt) Ltd* v *Bennett* N.O. 2007 (1) ZLR 343 (S) make plain that incapacity is a factual question and that the onus rests on the person alleging it.

[16] But that is not the end of the matter. Rule 61(2)(a) is triggered not only by proved mental incapacity. It is triggered by an application in connection with the estate of a person alleged to be under any disability, mental or otherwise. The rule is engaged at the threshold stage precisely because the Court must first determine, through an orderly procedure, who is to represent the person whose estate is implicated.

[17] This application concerns the applicant's mining claims. Mining claims are proprietary interests. The application is therefore plainly one "in connection with the estate" of the applicant.

[18] The disability is not speculative. The applicant's own papers state that he suffered a stroke. The notarial certificate attached to the power of attorney records that he was unable physically to sign and used a thumbprint. The 1st respondent goes further and alleges that the applicant cannot speak, write, or give instructions. That allegation may ultimately be true or false. But it is an allegation of disability within the meaning of r 61(2)(a).

[19] The proper response was not to proceed by ordinary court application through a family member armed with a power of attorney. The proper response was first to approach a judge in chambers for the appointment of a curator ad litem, annexing the written consent of the proposed curator. That would have allowed the Court to consider the applicant's condition, the proposed representative's suitability, the possible conflict of interest, and the proper protection of the applicant's estate.

[20] The need for caution is heightened by the family setting. Petty Makoni is not a stranger. She is the applicant's wife and the first respondent's mother. That fact does not disqualify her. But where a mother seeks, in her husband's name, to evict her son from mining claims

forming part of the husband's estate, the Court must be astute to ensure that the true litigant is properly before it and that the proceedings are not driven by family contestation rather than the principal's independent instructions.

[21] The power of attorney does not cure the defect. First, r 61(2)(a) prescribes a court-supervised preliminary process. A private power of attorney cannot override a rule of court. Secondly, the power of attorney itself is part of the disputed terrain. The 1st respondent challenges whether the applicant, in his present condition, could validly have authorised it. Thirdly, the very document relied upon contemplates that the agent's powers are exercisable only while the applicant is able to exercise such powers himself. Where that ability is directly disputed, the Court cannot simply assume the answer in favour of the person relying on the instrument.

[22] Mr Munakamwe's point *in limine* is therefore well taken. The application was instituted without prior compliance with r 61(2)(a). It is not properly before the Court.

[23] Although that conclusion is dispositive, I add a few words on the merits because the parties addressed them.

[24] The applicant relies on the *actio rei vindicatio.* The general principle is settled. An owner is entitled to recover his property from any person in possession unless that person establishes a legally recognised right to retain it. See *Chetty* v *Naidoo* 1974 (3) SA 13 (A), *Jolly* v *A Shannon & Anor* 1998 (1) ZLR 78 (H), and *Alspite Investments (Pvt) Ltd* v *Westerhoff* 2009 (2) ZLR 226 (H).

[25] However, motion proceedings are not designed for the resolution of serious factual disputes. In *Supa Plant Investments (Pvt) Ltd* v *Chidavaenzi 2009* (2) ZLR 132 (H), the Court held that a material dispute of fact arises where material facts alleged by the applicant are traversed by the respondent in such a manner as to leave the Court with no ready answer in the absence of further evidence.

[26] In this matter, the first respondent does not seriously dispute that the applicant is the registered owner of the mining claims. But he disputes the lawfulness and efficacy of the alleged revocation of his authority. He says he had authority to manage the claims before the applicant's stroke. He says the sale was authorised. He also points to pending proceedings

under HCH 4179/24 concerning agency and authority. Those are not peripheral disputes. They go to the foundation of whether his occupation is unlawful.

[27] The applicant relies heavily on documentary instruments: the general power of attorney to Petty Makoni, the revocation of the first respondent's power of attorney, and related instruments. Where authorship, authority, and execution are challenged, the Court must be slow to accept documents at face value without proper proof. In *U-Freight Euromar (Pvt) Ltd* v *Mutebuka* HH 5-03, MAKARAU J (as she was then) declined to accept a disputed document as authentic where the alleged author and signatory had not provided evidence sufficient to authenticate it.

[28] Thus, even if the application had survived the point *in limine,* the papers disclose disputes which are ill-suited to final relief by motion. A court asked to evict a son from mining claims on the strength of disputed familial and agency documents must be careful not to convert motion proceedings into a trial by affidavit.

[29] The preliminary point succeeds. The application cannot stand.

[30] As to costs, the 1st respondent sought costs on a higher scale. I am not persuaded that punitive costs are justified. The dispute arises in a family setting and raises a genuine procedural question. Ordinary costs will meet the justice of the case.

[31] In the result, the following order is made:

1. The point *in limine* raised by the first respondent succeeds.

2. The application is dismissed.

3. The applicant shall pay the first respondent's costs.

MAMBARA J:……

MD Hungwe Attorneys at Law, applicant's legal practitioners
Sawyer & Mkushi, first respondent's legal practitioners